

Disposition

The Court finds and orders as follows:

1. The Motion for Fees and Costs is GRANTED.
2. Plaintiff is awarded and shall recover from Kia attorneys' fees in the sum of **\$228,727.94**.
3. Plaintiff is awarded and shall recover from Kia costs of suit in the sum of **\$21,500.27**.
4. Plaintiff to prepare a proposed form of order after hearing.

17. 9:00 AM CASE NUMBER: N25-1830
CASE NAME: CLAIM OF: AVERY BENITEZ AVERY BENITEZ
***HEARING ON MINOR'S COMPROMISE**
FILED BY:
TENTATIVE RULING:

Plaintiff Don Benitez ("Plaintiff") filed a Petition for Approval of Compromise on or about September 12, 2025 (the "Minor's Compromise") seeking court approval of the compromise and proposed disposition set forth therein. See Code Civ. Proc. § 372 and Rule 7.950 *et seq.* of the California Rules of Court (CRC). The Minor's Compromise was set for hearing on February 2, 2026.

Analysis

The Minor's Compromise is unopposed.* The Court has considered the verified Minor's Compromise and finds the proposed terms to be just and reasonable.

*Although no proof of service appears of record, it appears that no prior notice to other parties is mandatory. See CJER, *California Judges Benchbook: Civil Proceedings—Before Trial* (2025) ("CJER Civ. Pro.—Before Trial"), § 5.45 (observing that neither the Code of Civil Procedure nor the CRC contemplate a noticed motion for approval of a minor's compromise and concluding that a judge "may decide a petition to approve or disapprove a minor's compromise on an ex parte basis, in chambers"). In any event, no party has sought to appear to oppose the Minor's Compromise.

Disposition

The Court finds and rules as follows:

1. The Minor's Compromise is APPROVED.
2. The Court shall enter the proposed forms of order lodged with the moving papers.

Courtroom Clerk's session

18. 10:00 AM CASE NUMBER: C23-01955
CASE NAME: NICOLE TRIPPIE VS. MISTY LEONE
COURT TRIAL HEARING BIFURCATED AS TO THE ISSUE OF THE OPERATING AGREEMENT.
FILED BY: